

MASTER SOFTWARE-AS-A-SERVICE AGREEMENT

1. Agreement Overview

This Master Software-as-a-Service Agreement (this "Agreement") is entered into as of June 5, 2024, between Arborline Software, Inc. ("Provider") and Summit Retail Group, LLC ("Customer"), and governs Customer's access to and use of Provider's cloud-based inventory management platform (the "Service").

2. Subscription and Access

Subject to the terms of this Agreement and timely payment of fees, Provider grants Customer a non-exclusive, non-transferable right to access and use the Service during the Subscription Term solely for Customer's internal business purposes, in accordance with the order form executed by both Parties.

3. Fees and Payment Terms

Customer shall pay Provider the subscription fees set forth in the applicable order form. Unless otherwise specified, fees are invoiced annually in advance and are due within thirty (30) days of the invoice date. Late payments shall accrue interest at a rate of 1.5% per month or the maximum rate permitted by law, whichever is lower.

4. Term and Termination

(a) Term. This Agreement shall commence on the Effective Date and continue for an initial term of one (1) year, automatically renewing for successive one-year terms unless either Party provides written notice of non-renewal at least sixty (60) days prior to the end of the then-current term.

(b) Termination for Breach. Either Party may terminate this Agreement if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days of written notice.

(c) Effect of Termination. Upon termination, Customer's right to access the Service shall immediately cease, and Provider shall make Customer's data available for export for a period of thirty (30) days following termination.

5. Service Level Commitment

Provider shall use commercially reasonable efforts to maintain Service availability of at least 99.5% measured monthly, excluding scheduled maintenance. If Provider fails to meet this commitment, Customer shall be entitled to service credits as set forth in Exhibit B.

6. Data Ownership and Security

Customer retains all rights, title, and interest in and to its data submitted to the Service ("Customer Data"). Provider shall implement and maintain commercially reasonable administrative, technical, and physical safeguards designed to protect the security and confidentiality of Customer Data.

7. Limitation of Liability

EXCEPT FOR BREACHES OF CONFIDENTIALITY OR INDEMNIFICATION OBLIGATIONS, IN NO EVENT SHALL EITHER PARTY'S AGGREGATE LIABILITY ARISING OUT OF THIS AGREEMENT EXCEED THE TOTAL FEES PAID BY CUSTOMER IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM. NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, SPECIAL, OR CONSEQUENTIAL DAMAGES.

8. Indemnification

Provider shall defend and indemnify Customer against any third-party claim alleging that the Service infringes a valid patent, copyright, or trademark, provided Customer promptly notifies Provider of such claim and cooperates in its defense.

9. Governing Law and Dispute Resolution

This Agreement shall be governed by the laws of the State of California. Any disputes arising under this Agreement shall be resolved through binding arbitration administered by JAMS in San Francisco, California.